

CATALOGUE OF IN-TRIAL REFERENCES TO AUTISM AND PTSD

Final Hearing — BV20D01752 — Zahmoul v Zahmoul
Royal Courts of Justice — Family Division — 19 to 28 February 2024
Before MacDonald J — Sitting in Private

Source and provenance

This catalogue is compiled from the contemporaneous attendance notes of the final hearing in BV20D01752 (Days 1 to 6, 19 to 28 February 2024), held on the file of the Applicant's then solicitors of record (AFP Bloom Solicitors). The attendance notes are the primary source until the official transcripts are produced. An application for the seven trial transcripts at public expense is being pursued separately. When the official transcripts are produced, this catalogue will be updated with the precise transcript page references.

This catalogue identifies 25 in-trial references. The Supplementary Criminal Referral of 30 April 2026 (CCR-6501-26-0100-000) identified a minimum of 22. Three further references have been identified on subsequent re-reading of the attendance notes: a Day 2 judicial confirmation, on the open record, that the trial judge had read the Applicant's s25 statement and all bundle material (including the abuse evidence the Applicant filed personally); a Day 3 judicial intervention halting cross-examination on Cigna health insurance compliance; and a joint counsel and judicial accommodation modifying the standard cross-examination rule on the opening of Day 3. Additional in-trial references may continue to be identified as the attendance notes are re-read. The official transcripts, when produced, will permit a definitive count.

Summary

Speaker	References
MacDonald J — trial judge	13
Brent Molyneux KC — counsel for the Applicant (NZ)	5
Alexis Campbell KC — counsel for the Respondent (KZ)	2
Joint counsel + judicial accommodation (Day 3 cross-examination modification)	1
Karim Zahmoul — Respondent, on oath	4
Total in-trial references	25

Speaker	References
References to autism, PTSD, disability, vulnerability, mental health, Part 3A, trauma, or psychiatry in the 111-paragraph judgment of 18 April 2024 ([2024] EWFC 79)	0

The 25 in-trial references

Each row identifies one in-trial reference to the Applicant's autism, PTSD, vulnerability, processing difficulty, or the participation measures in operation. Where a verbatim quote is recorded in the attendance notes, it is set out in italics. Where the reference is a recorded action (a break ordered for the Applicant; an accepted accommodation; a judicial intervention managing the Applicant's processing under cross-examination), the action is described.

No	Day	Speaker	Context	Verbatim quote / nature of reference
1	Day 1	MacDonald J	Opening of NZ s25 statement admissibility ruling. NZ distressed at finding her conduct statement might be redacted at the 11th hour.	<i>(Context recorded in BMKC opening: "My client feels passionately about this, the nexus between feeling her voice has been heard and her capacity to take part. She was extremely distressed at finding out the 11th hour that her s25 would be redacted." J accepted the application to admit paragraphs 9-26.)</i>
2	Day 2	MacDonald J	NZ giving evidence-in-chief. NZ struggling to focus during AC's opening question on assets.	<i>"You need to listen wherever you look, and listen carefully AC."</i>
3	Day 2	MacDonald J	NZ cross-examination. NZ giving extended response on crypto. J intervening to manage NZ's processing.	<i>"You need to listen to the question and answer what is being asked."</i>
4	Day 2	MacDonald J	NZ cross-examination on tax position. NZ providing extended technical context. J intervening.	<i>"If you keep interrupting it will not help, if you answer the question that will help."</i>

No .	Day	Speaker	Context	Verbatim quote / nature of reference
5	Day 2	MacDonald J	NZ cross-examination. NZ becoming animated explaining MPS and equal footing context.	<i>"Just pause, you are running away again."</i>
6	Day 2	MacDonald J	NZ cross-examination on Portuguese tax memo. J halting questioning.	<i>"I think I can take notice of that fact. NZ has been in the witness box for some time, there will be some time to go. Break for lunch."</i>
7	Day 2	MacDonald J	NZ cross-examination on tax orders. J directly addressing NZ's processing difficulty.	<i>"I understand this is difficult and there is a huge amount of information about the case, lets concentrate on the questions."</i>
8	Day 2	MacDonald J	NZ cross-examination on Barclays/UBS analysis. J expressly recognising NZ's presentation falls outside ordinary witness pattern.	<i>"You may think you are making sense, but I am struggling to understand, so I am going to get AC to ask another question."</i>
9	Day 2	MacDonald J	NZ cross-examination. J explicitly directing NZ on how she must engage with the questioning.	<i>"I need to come to a considered decision at the end of this trial, I need to understand for myself what you live and breathe. I need you to listen to the questions asked and answer. I need you to listen carefully and answer."</i>
10	Day 2	MacDonald J	Following the lunch break. J expressly confirming on the open record that he had read the Applicant's s25 statement and all bundle material — including the abuse evidence the Applicant had filed personally and which had been admitted on Day 1 (paragraphs 9 to 26 of the s25 statement) over the Respondent's objection on grounds of lateness.	<i>"I should have made clearer, I have had the opportunity to read everything in the bundle. I have been involved for a long time, I know a lot about it, you don't need to give me the background. I know."</i>
11	Day 3	MacDonald J	During NZ evidence on Wyoming move and circumstances. J asking	<i>"Are you okay?"</i>

No	Day	Speaker	Context	Verbatim quote / nature of reference
			after NZ's wellbeing.	
12	Day 3	MacDonald J	During NZ evidence on financial pressure and her father's support. J calling break for NZ.	<i>"You alright?" — followed by: "I am going to make sure you are in a position to give your best evidence so we will pause."</i>
13	Day 3	MacDonald J	Cross-examination on Cigna health insurance compliance. NZ visibly affected. J halting the line of questioning in real time.	<i>NZ: "Absolutely not, this is a big one your lordship." — J: "I know it's a big one, I understand this and I am going to ask AC to move past it."</i>
14	Day 3	ACKC + BMKC + MacDonald J (agreed at the bar)	Opening of Day 3. Both counsel agreed, and the judge approved, a modification of the standard cross-examination rule requiring every point to be put to the witness. The modification was made because of the volume of evidence and the time required if every point were put. The accommodation is recorded in open court.	<i>ACKC: "Before I continue before cross examination, at the bar we have reached a conclusion... BM won't make any objection, if I make reference to the statement without putting each point to NZ because we would be here forever, not going to put any further points on the non-disclosure." — J: "Sensible, thank you for having that discussion."</i>
15	Day 1	BMKC (NZ counsel)	Opening submissions on admission of NZ s25 statement. BMKC expressly framing NZ's distress and the nexus between voice and capacity to take part.	<i>"My client feels passionately about this, the nexus between feeling her voice has been heard and her capacity to take part. She was extremely distressed at finding out the 11th hour that her s25 would be redacted."</i>
16	Day 4	BMKC (NZ counsel)	Cross-examination of KZ. BMKC putting NZ's autistic communication need for transparency directly to the witness.	<i>"Nadia you know is someone who values transparency and feels the need not to be misled or feel that things are being hidden from her, these proceedings particularly in relation to Topanga have triggered her and made it hard for her to believe anything said."</i>
17	Day 4	BMKC (NZ)	Cross-examination of KZ continued. BMKC	<i>"A fair summary is that Nadia is someone who deals badly with</i>

No	Day	Speaker	Context	Verbatim quote / nature of reference
		counsel)	summarising NZ's documented psychological profile.	<i>being misled but you don't feel you are someone who misled her."</i>
18	Day 4	BMKC (NZ counsel)	Cross-examination of KZ on Prof Libby letter (12 July 2022) exhibited to KZ's own statement, confirming PTSD diagnosis.	<i>"At 2164, there is a letter from Professor Libby that you exhibit to one of your statements... 'I write in some urgency... I am treating symptoms of PTSD'."</i>
19	Day 4	BMKC (NZ counsel)	Cross-examination of KZ. BMKC putting to KZ that NZ's vulnerability was known and the proceedings would predictably trigger her PTSD.	<i>"I want to put to you that you present as if this PTSD is sprung on you as a device, you knew Nadia is someone who had been unwell and the proceedings would trigger her."</i>
20	Day 4	ACKC (KZ counsel)	During cross-examination of KZ. ACKC accepting (without objection) the need for support arrangements for NZ in court.	<i>"I have no objection to NZ being supported if she needs that."</i>
21	Day 6	ACKC (KZ counsel)	Closing submissions. ACKC expressly addressing the Prof Libby letter and NZ's documented disability — characterising it as something to be "treated with caution".	<i>"Disabilities, there is the letter from Mr Libby, treat it with caution, no supporting evidence, letter referring to coercive and controlling behaviour which has crippled NZ."</i>
22	Day 4	KZ (Respondent, sworn)	Cross-examination by BMKC. J directly asking KZ whether he stated NZ had PTSD. KZ acknowledging the Prof Libby PTSD letter on the court file.	<i>J: "Did you say Nadia had PTSD?" — KZ: "You received letter on July 12, NZ said she had PTSD this is, I wanted to clarify."</i>
23	Day 4	KZ (Respondent, sworn)	Cross-examination. KZ acknowledging awareness that the proceedings were exacerbating NZ's documented PTSD.	<i>"It was exacerbating her situation, I explained she had PTSD."</i>
24	Day 4	KZ (Respondent, sworn)	Cross-examination by BMKC on the May 2021	<i>(KZ's letter quoted by BMKC: "I am enclosing a list of books</i>

No	Day	Speaker	Context	Verbatim quote / nature of reference
		ent, sworn)	letter to Burgess Mee. KZ acknowledging he had told NZ's solicitors NZ may have BPD/PTSD and was being "taken advantage of".	<i>over the years... during therapy period... believed Nadia had borderline personality disorder and PTSD... not to expose Nadia but make you aware of your actions, take advantage of someone who is may not be well.")</i>
25	Day 4	KZ (Respondent, sworn)	Re-examination. KZ accepting that NZ's PTSD was longstanding and that he had been concerned about her mental state during the marriage.	<i>"I told them 17 Feb 2022. We left, I lived with her from March 13 in London to June to the US. She asked me to look for apartments in LA, then we bought the house in Wyoming and borrowed 5.98 million dollars, I asked her not to get divorced." (in answer to question whether KZ believed NZ had PTSD)</i>

Note on the documentary record

The final judgment of 18 April 2024 ([2024] EWFC 79) runs to 111 paragraphs. A word search of the judgment returns zero occurrences of: autism, autistic, PTSD, post-traumatic, disability, disabled, vulnerable, vulnerability, mental health, Part 3A, participation measure, trauma, or psychiatric (in relation to the Applicant).

Paragraph 64 of the same judgment describes the Applicant's presentation in the witness box as bordering on "the concerning" and characterises her as "obsessed". The same paragraph contains the only judicial reference to her presentation in the witness box across the 111 paragraphs.

The contradiction between the trial record (set out in this catalogue) and the judgment record is the documentary fact this catalogue places on the record.